

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: KCK on 06/22/26.
(Judge's initials) (Date)

(47)

Tentative Ruling

Re: **Brooke Rafferty v. Fred Faieta, Jr.**
Superior Court Case No. 23CECG01755

Hearing Date: June 23, 2026 (Dept. 501)

Motion: Defendant, Marielle Faieta's Motion to Strike Plaintiffs,' Sandy Rafferty and Brooke Rafferty's Second Amended Complaint, and to Dismiss this Action

Tentative Ruling:

To grant defendant, Marielle Faieta's motion to strike plaintiffs', Sandy Rafferty and Brooke Rafferty's second amended complaint, without leave to amend.

To grant defendant, Marielle Faieta's motion to dismiss this action.

Explanation:

Defendant, Marielle Faieta ("Faieta" or "defendant") moves to strike plaintiffs, Sandy Rafferty and Brooke Rafferty ("Rafferty's" or "plaintiffs") second amended complaint. ("SAC.")

On December 11, 2025, the Court sustained Faieta's demurrer to the entirety of Rafferty's first amended complaint. (FAC.") The Court's ruling provides in pertinent part:

Accordingly, the demurrer to the entire complaint is sustained on the ground that the action is time barred. Leave to amend is granted to allow plaintiffs an opportunity to plead facts to state a claim for account stated or establish that the events that occurred on August 19, 2019 constitutes a new or continuing contract against defendant Marielle Faieta only.

On December 19, 2025, plaintiffs filed their SAC.

The court may strike a pleading that is not drawn or filed in conformity with the laws of the state, a court rule or an order of the court. (Code Civ. Proc., §§435, 436.) "A court is not required to tolerate purported amended complaint that fails to amend previous pleading, is not filed in good faith, is filed in disregard of established procedural requirements, or is otherwise violative or orderly judicial administration." (*Tostevin v. Douglas* (1958) 160 Cal.App.2d 321, 331, quoting *Neal v. Bank of America National Trust & Savings Association* (1949) 93 Cal.App.2d 678, 682-683.) A motion to strike is properly granted where a plaintiff continues to plead the same allegations to which prior demurrers have been sustained, without attempt to cure. (*Kronsberg v. Wershow* (1965) 238 Cal.App.2d 170, 172-173; *Taliaferro v. Prettnner* (1955) 135 Cal.App.2d 157, 159.)

First, the SAC continues to name Fred Faieta, Jr. This is improper as plaintiffs were only granted leave to file a complaint against Marielle Faieta.

Accordingly, the Court strikes the entire action as to Fred Faieta, Jr.

Second, plaintiffs' SAC does not address any of the issues for which the Court allowed plaintiffs the opportunity to amend their complaint. Furthermore, the SAC fails to state any cognizable causes of action.

Accordingly, Faieta's motion to strike plaintiffs' SAC is granted.

Leave to amend should be granted where there is a “reasonable possibility the pleading can be cured by amendment.” (*Brenner v. City of El Cajon*, B (2003) 113 Cal.App.4th 434, 444.) Here, plaintiffs’ have not opposed this motion, and have not met their burden of demonstrating that the pleading can be cured. Accordingly, leave to amend is denied.

Code of Civil Procedure section 581, subdivision (f)(3), states that the Court may dismiss an action against a defendant “[a]fter a motion to strike the whole of a complaint is granted without leave to amend and either party moves for dismissal. Accordingly, Faieta’s motion to dismiss this action is granted.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

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